

Dinesh Kumar Vishwakarma v. M.D. (Dakshinanchal Vidyut Vitaran Khand)

Agra

High Court of Judicature at Allahabad · Division Bench · 12 October 2017 · Writ-C No. 48295 of 2017 · **Writ disposed; petitioner left to clause 6.5 bill correction.**

HEADNOTE

A consumer disputing electricity bills was relegated to clause 6.5 of the U.P. Electricity Supply Code, 2005. The Division Bench did not examine the bills and disposed of the writ, leaving that statutory correction remedy open.

FACTUAL SUMMARY

Dinesh Kumar Vishwakarma petitioned the Allahabad High Court disputing electricity bills issued by Dakshinanchal Vidyut Vitaran Khand, Agra. The Managing Director of the licensee and two others were impleaded. Counsel for the respondents submitted that the petitioner could seek correction of the bills under clause 6.5 of the U.P. Electricity Supply Code, 2005. The Court did not examine the bills or the underlying consumption dispute.

HOLDING-UNITS

HOLDING-UNIT · UP-2005::6.5

bill correction — clause 6.5 remedy

HOLDING

A writ disputing electricity bills was disposed of without examining the bills, leaving it open to the consumer to invoke clause 6.5 of the U.P. Electricity Supply Code, 2005 for correction of those bills. ¶ 1

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — CORRECTNESS OF THE DISPUTED ELECTRICITY BILLS

No examination of the bills or consumption; relegated to clause 6.5. ¶ 1